

Never-Filed Clerk Certificate Transmitting Summary-Denial Disposition to the Trial Judge

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401-CF-SUMMARY-DENIAL-NEVER-FILED

Document code: B06

Hypothetical date: 2026-04-01

Transmittal certificate

The clerk records that the April 1 summary-denial order and judgment were sent that day to the trial judge in the originating action.

Rule 21(b)(7) requires the clerk to send the final disposition to the trial judge. This certificate records same-day delivery of the summary-denial order and judgment on April 1; it does not claim that the rule itself says ‘immediately.’ The transmittal adds no merits reasoning, response obligation, argument authorization, or sealed-access right.

Rehearing period

No mandate follows in an original proceeding. The Rule 40 rehearing period remains open through April 15, fourteen days after the judgment entered April 1.

Fourth Circuit guidance states that a mandate does not issue in an original proceeding, so this certificate cannot be relabeled as one. The Rule 40 period remains open through April 15 after the April 1 judgment. If no rehearing petition is filed by that date, no additional clerk document is required to conclude the matter.

All people, entities, events, documents, and identifiers in this source are fictional. Nothing here is legal advice or a filing in any real court.